

was not in the government, and denied a motion to dismiss.¹³³ Even where the State Department filed a suggestion in the court that the vessel in dispute was the property of the Mexican Government, but the facts indicated that the vessel, *The Baja California*, was operated by a privately owned Mexican corporation engaged in carriage for hire for private shippers, the court refused to grant immunity. The court stated that immunity has been allowed on proof of possession and use by a State even if the State Department has not certified but in the case at hand the State Department did not recognize immunity, and the court would not enlarge the concept of immunity.¹³⁴ This method of a court's determining immunity for itself has been strongly criticized, but for a court to act otherwise would be an admission of its lack of complete freedom.

It is not suggested that the court can disregard sovereignty in its consideration of immunity from jurisdiction. The international law which is the law of the land equally with the domestic law is a limitation upon the freedom of a court. But a determination of immunity of the State Department in its suggestion to the court cannot be more than a request, and a compliance with it is really a recognition of a duty not to embarrass the

¹³³ *The Katingo Hadjipatera*, 119 F. 2d 1022 (2nd Cir. 1941).

¹³⁴ *Republic of Mexico v. Hoffman*, 324 U. S. 30, 89 L. Ed. 729 (1944); cf. decision therein of Justice Frankfurter in which he strongly attacks the granting of immunity on the basis of possession, and believes that courts should not disclaim jurisdiction except where the State Dep't or Congress explicitly ask for judicial abstention.